

Somisetty Dhanasai Pravallika, vs Somisetty Venkatasathyanarayana, on 27 June, 2025

APHC010156892025

IN THE HIGH COURT OF ANDHRA PRAD.

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FRIDAY.THE TWENTY SEVENTH DAY OF JUNE^-^.
TWO THOUSAND AND TWENTY FIVE

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PRESENT

THE HOH'BLE SRI JUSTICE VENUTHURUMALLI GOPALA KRISHNA RAO

TRANS. CIVIL MISC.PETITION NO: 111 OF 2025

Between:

Somisetty Dhanasai Pravallika, W/o Venkatasathyanarayana, Aged 26
years, Aged 26 years, Occ. House Wife, R/o Vigneswara Vibhavam
Residency, 4th Floor, Opp Bhashyam School Burripalem road,
Nandulapeta,Gandhi Nagar, Tenali Pin 522201,Guntur District.

...PETITIONER

AND

Somisetty Venkatasathyanarayana, S/oVenugopal Rao, Aged 30 years,
Occ. Private Employee, R/o Pamuru Village and Mandalam, Pakasam
District.

...RESPONDENT/S

Petition Under Section 24 of the C.P.C. Praying that in the circumstances
stated in the affidavit filed therewith ,the High Court may be pleased to
withdraw O.P No 82 of 2024 pending on the file of the Hon'ble Senior Civil
Judge, at Kandukur, Pakasam District and to transfer the same to the Senior
Civil Judge Tenali,Guntur District, for trial and disposal of the case.

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Petition under Section 151 CPC praying that in the circumstances stated

in the affidavit filed in support of the petition, the High Court may be pleased to grant stay of all further proceedings including presence of the Petitioner in O.P No 82 of 2024 pending on the file of the Hon'ble Senior Civil Judge, At Kandukur, Pakasam District pending disposal of the above Transfer CMP
Counsel for the Petitioner : SRI PRATHIWADA VARUN KUMAR

Counsel for the Respondent: SRI YELURI NAGADEEP

The Court made the following ORDER :

1

THE HON'BLE SRI JUSTICE V. GOPALA KRISHNA RAO

TRANSF^{ER} civil miscellaneous petition No.111 of 2025

ORDER:

Section 24 of The petitioner/wife herein filed the present petition under the Code of Civil Procedure, 1908, (for short 'the C.P.C.) seeking for withdrawal of O.P.No.82 of 2024 on the file of the Senior Civil Judge, Judge, Kandukur, Prakasam District and transfer the same to the Senior Civil Tenali, Guntur District, for trial, for trial.

2. The case of the petitioner in brief is as follows;

I. The petitioner is the legally wedded wife of the respondent and the marriage of the petitioner with the respondent was solemnized on A/c 12 08 2021, at Javvaji Bala Anjaneyuulu and Smt. Vijayalakshmi Function Hall, Boss Road, Tenali, Guntur District, as per the Hindu Rites and Caste Customs. During their wedlock period, the blessed with a male petitioner/wife and the respondent/husband were child. After that, due to the matrimonial disputes between both the along with her spouses , the petitioner/wife has been residing separately male child aged about five (5) years at her parents' house at Tenali. In view of the harassment made by the respondent/husband, the d for petitioner/wife lodged a complaint against the respondent/husban 3 & 4 the offences punishable under Section 498-A I.P.C. and Sections Tenali bf the Dowry Prohibition Act, 1961, before I Town Police Station, VGKR, J Tr.C.M.P.No.111 of 2025 Dated 27.06.2025 After completion of investigation, charge sheet has been filed by the Police and it has been numbered as C.C.No.381 of 2023 on the file of the I Additional Judicial Magistrate of First Class, Tenali, and she also filed a Maintenance Case vide M.C.No.18 of 2024 on the file of the I Additional Judicial Magistrate of First Class, Tenali, under Section 125 of Cr.P.C, seeking monthly maintenance from the respondent/husba nd and the said two (2) cases are pending for adjudication. II. The petitioner/wife further pleaded that to cause unnecessary inconvenience to her, the respondent/husband had filed O.P.No.82 of 2024 on the file of the Senior Civil Judge, Kandukur, Prakasam District under Section 13(1)(ia) of the Flindu Marriage Act, 1955, seeking for dissolution of the marriage and the same is also pending for adjudication.

III. The petitioner/wife further pleaded that, she being a woman, residing separately along with her child aged about five (5) years at her parents house at Tenali, it is very difficult for her to travel which is situated at a distance of more than 180Kms from Tenali to Kandukur to attend the divorce case proceedings on each and every adjournment without any male assistance and that she is constrained to file the present petition seeking for withdrawal of O.P.No.82 of 2024 on the file of the Senior Civil Judge, Kandukur, Prakasam District and transfer the same to the Senior Civil Judge, Tenali, Guntur District.

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VGKR
Tr.C.M.P.No.111 of 20
Dated 27.06,20

3. The respondent/husband filed his counter-affidavit and prayed that there are no valid grounds to consider the request made by the petitioner/wife and the petitioner has mentioned false averments in the petition.

4. Learned counsel for the respondent would contend that there are no merits in the present petition filed by the petitioner/wife and the present Transfer Civil Miscellaneous Petition may be dismissed.

5. Heard learned counsel appearing on both sides on record.

6. Perused the material available on record.

7. The material on record prima facie goes to show that, due to the matrimonial disputes between both the spouses, the petitioner/wife has been residing separately along with her child aged about five (5) years at her parents' house at Tenali, Guntur District and she had filed two (2) cases against the respondent/husband herein i.e., C.C.No.381 of 2023 on the file of the I Additional Judicial Magistrate of First Class, Tenali, and Maintenance Case vide M.C.No.18 of 2024 on the file of the I Additional Judicial Magistrate of First Class, Tenali and the said two (2) are pending for adjudication before the competent Courts at Tenali. The material on record further reveals that the respondent/husband has also instituted a case against the petitioner/wife herein i.e., O.P.No.82 of 2024 on the file of the Senior Civil Judge, Kandukur, Prakasam District, under Section 13(1)(ia)(ib) of the Hindu Marriage Act, VGKR, J Tr.C.M.P.No.111 of 2025 Dated 27.06.2025 1955, seeking for dissolution of the marriage and the same is also pending for adjudication.

8. The Apex Court in a case of GEETA HEERA Vs HARISH CHANDER HEERA\ held by considering the fact that "if a wife does not have sufficient funds to visit the place where the divorce petition is filed by her husband, then the transfer petition filed by the wife may be allowed."

9. The Apex Court in a case of N.C.V. AISHWARYA VS A.S. SARAVANA KARTHIK SHA\ held as follows:

"9. The cardinal principles for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer.

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10. On considering the submissions made by the learned counsel appearing for the petitioner and in view of the ratio laid down by the aforesaid case laws and on considering the facts and circumstances of the present case '(2000) 10 see 304 * ^ 2022 LiveLaw (SC) 627 r VGKR, J Tr.C.M.P.No.III of 2025 Dated 27.06.2025 that in matrimonial proceedings, the convenience of the wife has to be taken into consideration than that of the inconvenience of the husband. Therefore, I am of the considered view that there are justifiable grounds to consider the request made by the petitioner/wife, seeking for withdrawal of O.P.No.82 of 2024 on the file of the Senior Civil Judge, Kandukur, Prakasam District and transfer the same to the Principal Senior Civil Judge, Tenali, Guntur District.

11. In the result, the Transfer Civil Miscellaneous Petition is allowed and the O.P.No.82 of 2024 on the file of the Senior Civil Judge, Kandukur, Prakasam District, is hereby withdrawn and transferred to the Principal Senior Civil Judge, Tenali, Guntur District. The Senior Civil Judge, Kandukur, Prakasam District, shall transmit the case record in O.P.No.82 of 2024, to the Principal Senior Civil Judge, Tenali, Guntur District, duly indexed as expeditiously as possible preferably within a period of two (02) weeks from the date of receipt of a copy of the order. Both the parties are directed to appear before the Principal Senior Civil Judge, Tenali, Guntur District, on 04.08.2025, at 10.30 a.m. There shall be no order as to costs.

As a sequel, miscellaneous petitions, if any pending and the Interim order granted earlier, if any, shall stand closed.

SDI- A.VIJAY BABU ASSISTANT REGISTRAR //TRUE COPY// SECTION OFFICER To,

1. The Civil Judge(Senior Division), Kandukur, Pakasam District (i
2. The Principal Civil Judge(Senior Division), Tenali,Guntur District
3. One CC to Sri. Prathiwada Varun Kumar Advocate [OPUC]
4. One CC to Sri. Yeluri Nagadeep Advocate [OPUC]

5. THREE CD COPIES Stu TAC % HIGH COURT DATED: 27/06/2025 ORDER ALLOWING THE TR.CMP